

1819. to all intents and purposes, any law, usage or custom to the contrary notwithstanding.

2. *Be it enacted*, That this act shall take effect and be in force so soon as the state of Georgia shall have passed a law similar in its provisions.

CHAP. 19. An Act regulating proceedings on judgments and for other purposes. [Passed November 24, 1819.]

Justices of the peace and clerks not to issue executions in less than two years unless current money is taken.

Post ch. 70. s. 8.

1. *Be it enacted by the General Assembly of the State of Tennessee*, That no clerk of any court nor justice of the peace within this state shall hereafter issue any execution upon any judgment hereafter to be obtained until two years after the rendition of such judgment shall have elapsed, unless the plaintiff by himself or his attorney shall indorse upon the execution that the sheriff or other officer shall and may receive in satisfaction of said execution notes on the following banks, to wit: on the bank of the state of Tennessee, and its branches, and the Nashville bank and its branches or any of them and such other notes as pass at par with them; *Provided*, such notes continue current, and if the plaintiff shall make endorsement then it shall be the duty of the clerk or justice to issue such execution as heretofore; and it shall be the duty of the officer who may receive such execution for collection to receive such notes in satisfaction thereof; *Provided*, That nothing in this act contained shall be so construed as to alter or change the laws, heretofore in force authorizing justices of the peace to stay judgments by them rendered, in the manner pointed out by law.

Holder of notes may serve process on the president or cashier at the place where they are payable.

2. *Be it enacted*, That when any note or bill, notes or bills of any bank within this state, shall be or are payable at any branch of such bank, then and in that case it shall and may be lawful for the holder of such bill or bills, note or notes, or other evidence of debt payable as aforesaid, to commence and prosecute suit thereon in the county where such branch may be located, before any court or tribunal having jurisdiction of such pleas; and service of process on the President and cashier of such branch bank, or either of them shall be good and sufficient to all intents and purposes.

3. *Be it enacted*, That nothing in the first section shall apply to any judgment or execution against any bank within this state.

Oct. 1799, ch. 19, and acts there referred to.

CHAP. 20. An Act to amend the laws now in force on the subject of divorces, passed the 26th October 1799. [Passed October 23, 1819.]

When a petition is served the cause to

1. *Be it enacted by the General Assembly of the State of Tennessee*, That in all cases hereafter, when a copy of the petition is served upon said defendant, as required by the act, to which this is a supplement, the cause shall be heard and determined the